Social science

STD-9 Chapter-4

Distribution of Power in Indian Constitution

Which ideas put forward by the National Movement were included in the Objective Resolution?

*Social, economic and political justice,
*Equality of status,
*Equality of opportunity and equality before the law,
*Fundamental freedom of speech, expression, belief, worship, profession, association and assembly, subject to law and public morality, shall be ensured and protected

Identify the ideas presented in the Objective Resolution that were included in the Preamble of the Constitution of India and compare them.

*Sovreignty
*Socialism
*Secularism
*Democratic Republic

Formulation of Indian Constitution

*The Constitution of India was drafted by the Drafting Committee of the Constituent Assembly constituted on 6 th December 1946 on the recommendation of the Cabinet Mission,
*Duration - 2 years, 11 months and 17 days from 9 December 1946.
*The Constitution of India, adopted on 26 November 1949.
*The Constitution of India had 395 articles and 8 schedules in 22 parts.
*The Constitution of India that came into force on 26 January 1950 continues to be a living document, incorporating changes from time to time.

Features of Indian Constitution

*The largest written Constitution
*Parliamentary Democracy
*Rigid and Flexible Structure
*Fundamental Rights and Fundamental Duties
*Directive Principles of State Policy
*Bicameral Legislature
*Federalism with a strong
*Central Government
*An Independent and Impartial Judiciary
*Independent Constitutional Institutions

Find out how many parts and schedules are there in the constitution at present?

*As of June 2024, the Constitution of India has
-448 articles in
-25 parts and
-12 schedules.

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India a federal nation.

*According Article I of the Constitution, India i.e. Bharat shall be a union of states.
*But no where in the Constitution does it mention that India is a federal state.
*Federalism is a system of administration in which power is divided between two levels of government on the basis of the Constitution.
*It is an administrative arrangement in which the central government and the state governments share power.
*The basic features of federalism are considered to be a
-Written and Rigid Constitution,
-Division of Powers, and
-Independent Judiciary.

Find and list the reasons why India adopted the federal system.

*India have adopted the federal system to accommodate the social, regional and geographical diversity of India and to preserve the unity and integrity of the country.
*To strengthen democracy through power sharing between the Centre and the States.
*Diversity of India
*Wast geographical size of India
*Historical factors
*Accommodation of regional aspiration
*Influence of other federal systems.

Features of Indian federal system.

*Division of powers between the centre and states
*A common Constitution for the centre and the states
*Sovereignty of the Constitution
*In the division of powers more subjects and key powers are with the centre
*Single citizenship
*The centre has an upper hand in the powers to amend the Constitution
*An Independent and Impartial judiciary
*Bicameral legislature
*Quasi-federal system

Division of Powers in the Seventh Schedule

*Union List
*State List
*Concurrent List
*Residuary Powers

Union List

-This is a list of subjects over which the Union Government has exclusive law-making powers.
-When the constitution came into force, there were 97 subjects.(As of February 2024, the Union List of the Indian Constitution's seventh schedule has 100 subjects:)
-Example – Foreign Affairs,
Defence,
Railways,
Banking,
Citizenship, etc.

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State List

- This is a list of subjects over which State governments have legislative powers in normal circumstances.
-Initially, it had 66 subjects.
Example – Agriculture,
Jails,
Police,
Local Government, etc.

Concurrent List

- This is a list of subjects over which both the Central and the State Governments have legislative powers.
-Initially, it had 47 subjects.
Example – Education,
Forestry,
Trade Unions,
Marriage,
Birth and Death Registration, etc

Residuary Powers

- Subjects which are not included in any of three lists are called Residuary powers.
-The legislative power over these items are vested in the Central Government.
Example – Cyber Laws.

Legislature of India – features

*The legislative body of India is called Parliament.
*The primary responsibility of the Parliament is to make laws.
*Legislation is made to anticipate the various aspirations of the people, to meet the changes over time and to achieve new goals.
*The Parliament of India is a bicameral legislature.
*Two houses are, the Lok Sabha and the Rajya Sabha.
*Countries of a larger size and diversity usually have bicameral legislatures.
*It is helpful in representing the diversity (people and regions) of the country.
*Bicameral legislatures play an important role in enabling democratic discussions and debates.

Who is responsible to make laws in the States.

*State legislatures

Functions of the Indian Legislature

*Law making
*To control the executive
*Act as a custodian of the public treasury
*Act as judicial authority in impeachment
*Participate in the Presidential and Vice Presidential elections
*Consider and give assent to Constitutional amendment

Features of Lok Sabha

*The Lok Sabha is the lower house of the Parliament.

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*Members of the Lok Sabha are elected directly by the people on a majority system.
*Indian citizens who have completed 25 years of age are eligible to contest in Lok Sabha elections.
*The term of the Lok Sabha is five years.
*The maximum strength of Lok Sabha is 550
*But at present there are 543 (2024) members in the Lok Sabha.
*The formation and existence of governments is possible on the basis of the majority in the Lok Sabha.
*When a party or coalition fails to form a government or the ruling party or its coalition loses its majority, the country goes to a general election.
*The Lok Sabha is chaired by the speaker.
*It has more powers than the Rajya Sabha on financial matters.
*The money bill and non-confidence motion are presented in the Lok Sabha.

Features of Rajya Sabha
*The Rajya Sabha is the upper house of the Parliament.
*It is a house in which representation is given to the states in proportion to their population.
*Members of the Rajya Sabha are elected by elected members of State Legislative Assemblies.
*Indian citizens who have completed 30 years of age are eligible to contest in Rajya Sabha.
*Rajya Sabha is a permanent house.
*The term of office of its members is six years.
*One-third of its members retire every two years and elections are held to fill those vacancies.
*The Rajya Sabha is chaired by the Vice President
*It is a house in which representation is given to the states in proportion to their population.
*Members of the Rajya Sabha are elected by elected *The maximum strength of the Rajya Sabha is 250.
*Of these, 238 are elected and the remaining 12 are nominated by the President.
*It is from the Rajya Sabha, the proceedings to remove t the Vice President begins.
*The Rajya Sabha is vested with the power to mandate the Parliament to create new All India Service.

Legislation in India
-The power to make laws in India is vested in the Parliament.
-There are several procedures as mandated by the constitution and formed in due course as well, in the legislative process.
-Law making is not just a technical process, but also a political process.
-The laws are the government's response to public opinion from various corners of the society.
-Legislation is often enacted as part of political parties fulfilment of election promises and to facilitate the process of administration.
-When the Cabinet gives approval for legislation, the draft of the law i.e., the Bill is prepared by the official under the supervision and instruction of the ministry concern

Types of bills
-Money Bill
-Non-Money Bills.(Constitutional Amendment Bills and Ordinary Bills fall under the category of Non-Money Bills.)

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Different stages through which a bill becomes a law.

-First Reading - Any bill other than a Money Bill is presented in either house by a Minister or a Private Member.
-Second Reading - At this stage, the bill is either sent to a committee for examination or debated within the house itself.
-Changes or amendments can be accepted during this stage.
-Third Reading – At this stage, the house approves or rejects the bill.
-Once the bill completes all stages in the house where it was initially introduced, the same process is being repeated in the second house.
-If the both houses agree on the final version of the bill, it is then submitted to the President for assent.
-Once the President gave his/her assent , the bill officially becomes the law.

Adult suffrage

-Approval of the 61st (1988) Constitutional Amendment :Those who turn 18 can cast their vote.

Right to Education Act

-President Approves 86th (2002)Constitutional Amendment: Education, now, becomes our Fundamental Right (Right to Education Act 2009-Article 21A)

Goods and Services Tax

-The Goods and Services Tax (GST) came into force under the 101st (2026)Amendment. Goods and Services Tax (GST) was introduced in India on 1 st July 2017 merging different indirect taxes imposed by central and state governments.

Constitutional amendment in India

-A constitutional amendment is the making of corrections, omissions or additions to the Constitution.
-Amendment process is helpful in altering the Constitution from time to time considering the socio - political needs.
-The power to amend the Constitution of India is vested with the Parliament.
-Article 368 empowers the Parliament to amend the Constitution.
-The amendment bill does not require the prior assent of the President.

Different Methods of Constitutional Amendment

Flexible Amendment	Rigid Amendment	More Rigid Amendment
-Certain provisions of the Constitution of India can be amended by the Parliament with simple majority through the procedures similar to ordinary legislation. -Examples *Name of the states, *Boundaries, *Citizenship, etc.	-A special majority of both the houses of the Parliament is required to make amendments in certain important provisions. -Examples *Fundamental Rights, *Directive Principles, etc.	-Some very crucial provisions can be amended only with the special majority of both houses of the Parliament along with the approval of not less than half of the states. -Examples *Division of powers between Centre and State, *Representation of the Peoples Act, etc.

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Which organ of the our government are responsible for implementing the law passed by the Parliament

-The Executive

Executive

-The Executive is the branch of the government which is responsible for the implementation and administration of laws and policies.
-It consists of the President, the Vice President and the Cabinet headed by the Prime Minister.
-Although, the powers of the executive are vested with the President under the provisions of the Constitution, it is exercised by the Council of Ministers headed by the Prime Minister.

Political Executive and permanent Executive.

Political Executive	**Permanent Executive.**
-President, -Vice president, -Prime Minister, -Council of Ministers	-Bureaucracy *All India Service, *Central Service, *State Service

Division of Political Executive

Nominal Executive	Real Executive
-President	-Prime Minister and -the Council of Ministers

Political Executive

-The Political Executive consists of the President, the Vice President, and the Council of Ministers headed by the Prime Minister.
-Constitutionally the President is the head of the executive.
-But the President has to act in accordance with the advice given by the Council of Ministers headed by the Prime Minister.
-At the same time, there are situations in which the President acts as per his/her discretion.

Indian President – Election and qualifications

-The President is the executive head of the State.
-An Indian citizen who has completed thirty five years of age can contest in the Presidential election
-The President is elected by an Electoral College, which consists of the elected members of both Houses of the Parliament and State Legislative Assemblies only.
-The term of office of the president is five years.

List out the functions of the president .

-Summon the Parliament,
-Dissolve the Lok Sabha,
-Appoint the Prime Ministers,
-Appoint the Council of Ministers,
-Appoint the judges of the Supreme Court,

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-Appoint the High Courts, State Governors,
-Declaration of emergency,
-Acts as the Commander-in-Chief of the defence forces. -The President submits his/her resignation to the Vice President.
-In the absence of the President, the Vice President performs all the duties of the President.

Prepare a short note on Indian Prime Minister

-Administrative head of the country.
-Prime Minister is the leader of the party and its alliance with a majority in the Lok Sabha.
-Prime Minister is the leader of the nation.
-Prime Minister forms the Council of Ministers and decides the members of his/her Cabinet.
-The Prime Minister has the power to change the portfolios of ministers and to include or remove members from the Council of Ministers.
-The Prime Minister acts as the link between the President, the Cabinet and the Parliament.
-If the Prime Minister loses his/her majority in the Lok Sabha before the term of five years, he/she must submit resignation to the President.

Functions of the Council of Ministers

-Administration of the country
-Formulation of national and foreign policies
-Coordinate the activities of various departments
-Draft bills and ordinances
-Steering the legislative process
-Perform other administrative and welfare functions and maintain foreign relations

Prepare a short note on Indian Permanent Executive

-The bureaucracy carries out the day-to-day operations of the government and assists the political executive in formulating bills including the budget.
-They are a skilled and accomplished category
who are selected through competitive examinations and trained on the basis of merit.
-They are termed as permanent executive as they have a tenure up to a fixed age of retirement

Judiciary

-The Judiciary is the mechanism that ensures the functions of legislative and executive, in accordance with the Constitution.
-Along with protecting the rights of the citizens, it protects the constitutional values.
-Therefore, the Judiciary is known as the Protector of the Constitution.
-An independent and impartial Judiciary is essential for an efficient democratic system.

Prepare a short note on India's Supreme Court

-The Supreme Court, came into existence on 28 January 1950.
-Its headquarters is at New Delhi.
-The retirement age of Supreme Court judges is 65 years.
-The Parliament has the power to remove Judges of Supreme Court before completing his/her term.
-It is before the President that the Chief Justice and other judges take oath as well as submit their resignation.

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-The Supreme Court acts as the supreme interpreter of the Constitution and the guardian of fundamental rights, while providing solutions to various legal disputes.

Powers of the Supreme Court

-Original Jurisdiction
-Appellate Jurisdiction
-Advisory Jurisdiction.
-Writ Jurisdiction.
-Judicial Review

Original Jurisdiction

-Certain matters which can be resolved only by the Supreme Court come within the ambit of this jurisdiction.

E.g., Centre-State Disputes.

Appellate Jurisdiction

-The Supreme Court is the highest appellate court.
-Therefore, it has the jurisdiction to entertain appeals against the judgement of any lower court in the country.

Advisory Jurisdiction.

-The Supreme Court has a constitutional obligation to give legal advice on any matter demanded by the President.

Writ Jurisdiction.

-The Supreme Court has the powers to issue special orders in the form of writs for the protection of fundamental rights when they are violated.

Judicial Review

-Judiciary is the most powerful force in carrying out its role as the guardian of the Constitution with its judicial review.

How Parliament can control the Executive

Parliament can control the Executive through budget approval and question-hour

How Parliament can control the Judiciary

Parliament can control the Judiciary through impeachment.

How The Executive can control the Parliament

-The Executive controls the Parliament through its powers such as the approval of bills, consideration of mercy petitions.

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How the Executive can control the Judiciary

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The Executive the Judiciary through consideration of mercy petitions and postings and transfer of judges.

How the Judiciary can control the Parliament the Executive

Through the Power of Judicial Review, the Judiciary can control the Parliament and the Executive.

Checks and Balances

-Constitutionally, the powers of the government are divided into three branches: Legislative, Executive and Judicial.

-However, our Constitution has taken care to ensure a reasonable mutual control, co-ordination and balance in the exercise of powers among them.

-The powers of the government is divided among the three branches to avoid centralisation of power, prevent autocratic tendencies and to maintain democracy.

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